

Court No. - 21

Case :- WRIT - C No. - 3468 of 2023

Petitioner :- Israr Khan

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Sandeep Kumar Tripathi

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Counsel for the petitioner is granted time to study the matter.

List as fresh on 08.02.2023.

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Order Date :- 1.2.2023

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

Counsel for the petitioner seeks adjournment.

List as fresh on 15.2.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 8.2.2023

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

The contention is that the objection filed by the petitioner against the order of provisional assessment in pursuance of order of the Writ Court has not been decided and straightaway the respondents have issued the final assessment order.

Learned counsel for the respondent Electricity Department seeks time to ascertain whether the objection filed by the petitioner was decided or not.

Accordingly and as prayed, list as fresh on 22.02.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.2.2023

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

The petitioner has challenged the demand notice dated 14.10.2022 issued by respondent no. 2 for recovery of electricity dues from the petitioner in a case of theft of electricity.

Sri Pranjal Mehrotra, learned counsel appearing on behalf of the respondent electricity department, on instruction, states that the impugned recovery has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the instant petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Order Date :- 22.2.2023

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(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)